

**State of Vermont
Secretary of State
Office of Professional Regulation
Board of Allied Mental Health Practitioners**

In re: NATHAN LEE KOKERNOT
Docket No.: 2026-7
License No.: 068.0135138
Appearances: Prosecutor: Zoe Newman, Esq.
Respondent: Did Not Appear
Presiding Officer: Patricia Gabel, Esq.

DEFAULT ORDER

The Administrative Law Officer held a hearing in the above matter electronically via the Microsoft Teams Meeting Platform on April 28, 2026. This public hearing was held pursuant to a Notice of Hearing. Respondent did not attend and was not represented by counsel.

Authority

The Vermont State Board of Allied Mental Health Practitioners ["Board"] has authority to issue warnings or reprimands; suspend, revoke, limit, or condition current licenses or registrations if, after disciplinary hearing, the Board finds the Respondent has engaged in unprofessional conduct. 3 V.S.A. Sec. 129; 3 V.S.A. Sec 129a; 3 V.S.A. Sec. 814; 26 V.S.A. Chapter 65; the Administrative Rules of the Board of Allied Mental Health Practitioners; and the Rules of the Office of Professional Regulation ["OPR"].

Findings of Fact

1. The Specification of Charges was filed in this matter on February 26, 2026, setting forth various allegations of unprofessional conduct. A copy of the Specification of Charges is attached to this Default Order.
2. Respondent is and at all relevant times was licensed by the State of Vermont as a Licensed Clinical Mental Health Counselor ["LCMHC"] under license No. 068.0135138. This license was first issued on February 24, 2023, and expires on January 31, 2027.
3. On February 26, 2026, a Notice of Charges was sent to Respondent by certified mail, first-class mail, and email.
4. The addresses used by the Docket Clerk to communicate with Respondent were the addresses set forth for Respondent in the OPR computer system and files.

5. The Docket Clerk received the returned green receipt associated with the certified mail for the Specification of Charges. It was signed by the Respondent on March 5, 2026.
6. The Hearing Officer of the Board finds service of the notice of the Specification of Charges to be proper.
7. Administrative Rules of Practice of the Office of Professional Regulation ["ARPOPR"] Rule 3.3 requires that an Answer be filed within twenty [20] days of the date on which the notice of charges was mailed by the Director.
8. As of the date of the default hearing [April 28, 2026], no Answer to the charges was filed.
9. Under ARPOPR Rule 3.4, a default may be entered when an Answer is not filed within the required time period.
10. On March 30, 2026, the Prosecutor filed a Motion for Default.
11. On March 30, 2026, the Docket Clerk sent a Notice of Hearing for Default Judgment to the Respondent at the same physical and email addresses to which the Specification of Charges was sent.
12. The Docket Clerk received the returned green receipt associated with the certified mail for the Notice of Hearing for Default Judgment. It was signed by the Respondent on April 6, 2026.
13. The Hearing Officer of the Board finds the service of the Notice of Hearing for Default Judgment to be proper.
14. On March 30, 2026, the Prosecution filed the State's Sanction Recommendation for Default Hearing in this case.
15. Respondent has not filed an Answer to the charges, nor any communication concerning good cause for failure to answer. The Respondent did not appear at the hearing on default.
16. The Hearing Officer of the Board finds the Respondent to be in default based upon the Docket Clerk's testimony, the State's Motion for Default, the Prosecution's presentation, and by taking official notice of the files of OPR and the Board.
17. The allegations contained in the Specification of Charges are therefore treated as the facts on which the Board may issue an order of professional discipline. ARPOPR Rule 3.4, 3 V.S.A. § 809(d), and 3 V.S.A. § 814(c).

18. The Hearing Officer of the Board treats the allegations in the Specification of Charges as proven and incorporated by reference into this proposed Order as if set forth at length herein. See ARPOPR Rule 3.4.

19. The Hearing Officer of the Board finds the sanction requested by the State, which is license revocation, to be appropriate.

Conclusions of Law

Respondent has received actual or constructive notice of the charges in this matter as indicated by OPR's and the Board's file, the testimony of the Docket Clerk, and the Prosecutions's presentation. Because Respondent has failed to answer the charges, the factual allegations in the Specification of Charges are treated as if proved. ARPOPR Rule 3.4. Accordingly, the Board may find, based upon the finding of Default from this Default Hearing held pursuant to 3 V.S.A. Sec. 809(d) that Respondent has engaged in the unprofessional conduct alleged in the Specification of Charges, which is incorporated into this Proposed Order by reference.

The Board may find that Respondent has committed violations of the following statutes:

- 26 V.S.A. Sec 3271(a)(3) – conduct that evidences unfitness to practice clinical mental health counseling;
- 26 V.S.A. Sec. 3271(a)(6) – entering into an additional relationship with a client, supervisee, research participant, or student that might impair the licensed clinical mental health counselor's objectivity or otherwise interfere with the clinical mental health counselor's professional obligations;
- 26 V.S.A. Sec 129a(a)(19) – willful misrepresentation in treatments or therapies;
- 3 V.S.A. Sec. 129;(a)(28) – engaging in conduct of a character likely to deceive, defraud, or harm the public; and
- 3 V.S.A. Sec. 129a(b)(1) – Failure to practice competently by reason of any cause on a single occasion or on multiple occasions may constitute unprofessional conduct, whether actual injury to a client, patient, or customer has occurred. Failure to practice competently includes: performance of unsafe or unacceptable patient or client care.

Proposed Order

In accordance with the above Findings of Fact and Conclusions of Law, and consistent with the recommendation by the State, the Board does find:

1. Respondent's conduct evidenced unfitness to practice clinical mental health counseling in violation of 26 V.S.A. Sec. 3271(a)(3).
2. Respondent entered into additional relationships with clients that might impair his objectivity as a licensed clinical mental health counselor or otherwise interfere with his professional obligations as a clinical mental health counselor in violation of 26 V.S.A. Sec. 3271(a)(6).
3. Respondent engaged in willful misrepresentation in treatments or therapies in violation of 3 V.S.A. 129a(a)(19).
4. Respondent engaged in conduct of a character likely to deceive, defraud, or harm the public in violation of 3 V.S.A. Sec. 129a(a)(28).
5. Respondent's failure to practice competently by reason of any cause on a single occasion or on multiple occasions constituted unprofessional conduct in violation of 3 V.S.A. Sec. 129a(b)(1).

The Board does ORDER that Respondent's license is **REVOKED**.

Pursuant to 3 V.S.A. § 125(b)(11) and 3 V.S.A. § 129(a)(3), a **DISCIPLINARY ACTION SURCHARGE** in the amount of two hundred and fifty dollars (\$250.00) is assessed against Respondent. Respondent shall remit payment within 180 days of the date of entry of this Order. Payment of the surcharge may be on a payment plan if needed. Failure to remit payment may result in the non-renewal of Respondent's license/credential.

The Hearing Officer reports the above findings of facts, conclusions of law, and the proposed order to the Board or Director with the recommendation that the Board or Director approve them and enter the Order as above.

Dated this 4th day of May, 2026.

Signed by:

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Patricia Gabel
Hearing Officer of the Vermont Board of Allied Mental Health Practitioners

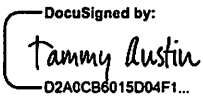
The Vermont Board of Allied Mental Health Practitioners, or the Director of the Office of Professional Regulation, considered the report of findings of fact and conclusions of law on 5/11/26. After considering the report, the Hearing Authority takes the following action:

- / / Rejects the report and schedules the matter for hearing.
- / / Schedules the matter for additional evidence.

/ X/ Accepts the report, adopts the findings of fact and conclusions of law, and orders the recommended discipline as set forth in the proposed order above.

SO ORDERED.

Vermont Board of Allied Mental Health Practitioners or Director of the Office of Professional Regulation

By:  Date: 5/27/2026 , 2022
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Vermont Allied Mental Health Practitioners

OFFICE OF PROFESSIONAL REGULATION

DATE OF ENTRY: 5/28/26

APPEAL RIGHTS

This is a final administrative determination by the Vermont Board of Allied Mental Health Practitioners or Director of the Office of Professional Regulation. A party aggrieved by a final decision of a board or hearing authority may appeal this decision by filing a written Notice of Appeal with the Director of the Office of Professional Regulation, Vermont Secretary of State, 89 Main Street, Fl. 3, Montpelier, VT 056203402 within 30 days of the entry of this order. If an appeal is filed, the Director of the Office of Professional Regulation shall assign the case to an appellate officer. The review shall be conducted on the basis of the record created before the board. In cases of alleged irregularities in procedure before the board, not shown in the record, proof on that issue may be taken by the appellate officer. 3 V.S.A. §§ 129(d) and 130a.